HONEYCOMB (PRIVATE) LIMITED
versus
CITY OF HARARE
and
HERENTALS COLLEGE (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, 12 March 2026

Opposed Matter

F. P Mashura, for the applicant
B Maunze, for the second respondent

MUNANGATI- MANONGWA J: This is a court application for an order compelling compliance. The applicant seeks an order directing the first respondent to enforce its demolition orders affecting the property known as 17 Cowie Road, Cold Comfort, Harare. The applicant instituted proceedings in March 2025 against the first respondent, City of Harare. No opposition was filed and the matter was placed on the unopposed roll for hearing. In April 2025, the second respondent was joined to these proceedings by order of MUCHAWA J.

In his founding affidavit the applicant, through its Director Mr Muyengwa E. Motsi, avers that, the first respondent, as the Planning Authority, is mandated to administer and enforce the provisions of the Regional, Town and Country Planning Act [*Chapter 29:12*] within the municipal boundaries of the City of Harare. The applicant alleges that, in the exercise of those statutory functions, the first respondent issued and duly served Enforcement Orders, Prohibition Orders and Demolition Orders in terms of sections 32, 34 and 35 of the Regional, Town and Country Planning Act [*Chapter 29:12*] with respect to the erection of certain classroom blocks on Lot 7 of Subdivision A of Tynwald South of Fountainbleau, on two occasions, namely 12 May 2017 and 13 December 2024.

The applicant further avers that the first respondent has a public record of enforcing demolitions of unauthorised developments and buildings and that the first respondent's failure to give effect to its own orders in this matter amounts to an unexplained and material neglect of duty. The applicant contends that no reasonable explanation has been furnished for that omission

and that the first respondent's conduct signifies arbitrary and selective application of the law and raises concerns of impropriety, including the possibility of corrupt conduct.

In response, the second respondent, through its legal representative Mr Maunze, raised a point *in limine* contending that the proceedings are irregular because a juristic person has purportedly been improperly self-represented. Mr Maunze submits that the applicant cannot institute proceedings in its own name through an individual. He directed the court's attention to a board resolution annexed to the papers, which he contends is in violation of section 9 of the Legal Practitioners Act. He further relies on the authority of *Lees Import & Export (Pvt) Ltd* v *Zimbabwe Banking Corporation Ltd* (SC 78/99) for the proposition that, once incorporated, a company cannot approach this court as if it were a natural person and that proceedings instituted in such manner are a nullity. Accordingly, Mr Maunze insists that the point *in limine* be upheld and that the application be struck from the roll.

In answer to that objection, counsel for the applicant, Mr Mashura, maintains that there is nothing irregular in Mr Motsi instituting the proceedings on behalf of applicant because a board resolution authorising him to act on behalf of the applicant has been duly annexed to the founding papers. Mr Mashura further submits that the High Court Rules do not expressly prohibit a company from instituting proceedings in the High Court through an authorised director and that the authority conferred by the board resolution suffices to confer authority and mandate Mr Motsi to depose to affidavits and deal with the matter on the applicant's behalf.

ISSUES FOR DETERMINATION

Given the circumstances of this matter, the Court must determine, whether a juristic person may properly approach this court directly on its own.

ANALYSIS

Proper institution of proceedings is a foundational requirement for the exercise of judicial power. Where a proceeding is irregular due to lack of capacity of the party to sue or due to the formal requirements for instituting proceedings, that irregularity is not a mere procedural blemish but an incurable defect that renders the entire process a nullity. An act which is invalid at its inception cannot be validated by subsequent compliance or curative steps; later attempts to remedy a defect cannot retrospectively cure a vice that existed from the outset. Where the

relevant statute or rule prescribes a particular mode of representation or institution, non-compliance is therefore not tolerated.

A juristic person does not possess the physical capacity to appear in court in the same manner as a natural person; it must act through natural persons who themselves are properly authorised and admitted to practice. The case of *Lees Import & Export (Pvt) Ltd* v *Zimbabwe Banking Corporation Ltd* (SC 78/99) underscores that, once incorporated, a company cannot assume the procedural standing of a natural person and institute proceedings in a manner that circumvents statutory regulation of representation.

The annexed board resolution relied upon by the applicant does not cure the defect. Section 9 of the Legal Practitioners Act [*Chapter 27:07*] and the cited Supreme Court case, articulate constraints on who may practice or represent parties in courts; a board resolution cannot be permitted to stand in lieu of the statutory safeguards that the Act and the precedent has set. The purported authorisation of a director to institute and prosecute proceedings in the High Court, does not dispense with the need to engage a legal practitioner. The court cannot and will not countenance procedural manoeuvres which undermine the protective framework governing litigation and legal representation.

The proceedings were instituted in contravention of the prescribed formalities and they were invalid at the very beginning. The consequence therefore is that the application is *void ab initio* and must be struck from the roll.

Accordingly, the court makes the following order: -

1. The point *in limine* raised by the second respondent is upheld.
2. The proceedings instituted by the applicant are *void ab initio*.
3. The application is struck from the roll.
4. The applicant to pay second respondent's costs.

MUNANGATI- MANONGWA J:……

Tabana and Marwa, applicant's legal practitioners
Madanhe and Chigudugudze Legal Practitioners, second respondent's legal practitioners